

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
TISHAN PURCELL-HOLMES

Plaintiff,

Index #

-against-

SUMMONS

THE CITY OF NEW YORK; THE NEW YORK CITY
POLICE DEPARTMENT; NYPD OFFICER PIERRE
SENAT TAX# [REDACTED]; NYPD OFFICER FNU
LLUBERES TAX# [REDACTED]; NYPD OFFICER FNU
FERRER TAX# [REDACTED]; NYPD OFFICER FNU
LOPEZ [REDACTED]; NYPD OFFICER FNU HERNANDEZ
TAX# [REDACTED]; NYPD OFFICER FNU PAULINO
TAX# [REDACTED]; NYPD SGT FNU GIBSON TAX# [REDACTED]

Plaintiff designates Bronx
County as the place of trial.
The basis of venue is that
Plaintiff resides in Bronx
County. Jury trial demanded.

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this
action and to serve a copy of your answer, or, if the complaint is not served with this summons,
to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of the
summons, exclusive of the day of service or within 30 days after the service is complete if this
summons is not personally delivered to you within the State of New York; and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the notice set forth below and in the within Verified Complaint.

Dated: June 11, 2024
Hempstead, New York

Yours, etc.,

Brill Legal Group, P.C.
Attorneys for Plaintiff



By: Peter Brill, Esq.
64 Hilton Avenue
Hempstead, NY 10001
(516) 206-2002

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
TISHAN PURCELL-HOLMES,

Plaintiff,

Index #

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK; THE NEW YORK CITY
POLICE DEPARTMENT; NYPD OFFICER PIERRE
SENAT TAX# [REDACTED]; NYPD OFFICER FNU
LLUBERES TAX# [REDACTED]; NYPD OFFICER FNU
FERRER TAX# [REDACTED]; NYPD OFFICER FNU
LOPEZ [REDACTED]; NYPD OFFICER FNU HERNANDEZ
TAX# [REDACTED]; NYPD OFFICER FNU PAULINO
TAX# [REDACTED]; NYPD SGT FNU GIBSON TAX# [REDACTED],

Defendants.

-----X
Plaintiff TISHAN PURCELL HOLMES by his attorneys, BRILL LEGAL GROUP, P.C.,
complaining of the defendants, respectfully shows to this Court and alleges the following upon
information and belief:

1. Plaintiff demands a jury trial and designates Bronx County as the place of trial.
2. The basis of venue is that Plaintiff currently resides in Bronx County.
3. That at all times, Plaintiff TISHAN PURCELL HOLMES was and is a resident of
Bronx County and the State of New York.
4. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK,
hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing
under and by virtue of the laws of the State of New York.

5. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.

6. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER PIERRE SENAT, hereinafter referred to as “SENAT”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER FNU LLUBERES, hereinafter referred to as “LLUBERES”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER FNU FERRER, hereinafter referred to as “FERRER”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

9. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER FNU LOPEZ, hereinafter referred to as “LOPEZ”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

10. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER FNU HERNANDEZ, hereinafter referred to as “HERNANDEZ”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

11. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER FNU PAULINO, hereinafter referred to as “PAULINO”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

12. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE SGT FNU GIBSON, hereinafter referred to as “GIBSON”, was and is employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

13. Upon information and belief, at all times hereinafter mentioned, and on March 29, 2022, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were on duty in Bronx County, New York City.

14. Upon information and belief, at all times hereinafter mentioned, and on March 29, 2022, the above-mentioned defendants were acting within the scope of their employment and under the direction of the CITY and NYPD, respectively, as its agents, servants and/or employees. Consequently, the CITY is liable under the doctrine of *respondeat superior* for SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON’S tortious actions.

15. That on and prior to March 29, 2022, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

16. That on and prior to March 29, 2022, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were each individually and/or collectively acting pursuant to and under the rules and regulations of the NYPD Patrol Guide.

17. Plaintiff TISHAN PURCELL HOLMES, who is African American, lives at 140 Debs Place, Apartment 9C, Bronx, New York. At the time of the below incident, he lived at 3550 Bivona Street, Apartment 6C, Bronx, New York.

18. On March 29, 2022, Mr. Purcell Holmes drove his Honda Accord - along with his friend, Noel Budran - from the Bronx to Yonkers to look at an apartment. They then drove back to the Bronx.

19. At approximately 6:00 p.m., Mr. Purcell Holmes stopped the car on Katonah Avenue between 233rd and 234th Streets in the Bronx to let Mr. Budran out.

20. About a minute or two after he stopped the car, Mr. Budran got back into the car.

21. At that moment, Mr. Purcell Holmes looked up, and immediately noticed a uniformed police officer at his window, OFFICER PIERRE SENAT, who then knocked on the window, surprising him. Officer Senat, who had apparently exited from an unmarked police vehicle, had not previously activated his car lights or siren.

22. Mr. Purcell Holmes rolled down the window and asked Officer Senat why he had been approached. Senat informed him he would tell him “in a minute.” Mr. Purcell Holmes provided Senat his license and registration. Senat informed Mr. Purcell Holmes he would run the documents but did not. Instead, he placed them on the roof of the car and ordered Mr. Holmes to step out of the car.

23. Mr. Purcell Holmes stepped out, as did Mr. Budran. They were then both patted down, then directed to stand at the rear of the vehicle. They were not told why they had been ordered out of their vehicle or subjected to a frisk. Mr. Purcell Holmes had no weapons or contraband on his person.

24. At no time did NYPD have reasonable suspicion or probable cause to search Mr. Purcell Holmes.

25. Officer Senat then falsely proclaimed that Mr. Purcell Holmes had been pulled over because he had “swerved out of the yellow lines.” He also confusingly told Mr. Purcell Holmes “you obstructed your view.”

26. Officer Senat then proceeded to search Mr. Purcell Holmes’ car, assisted by what became approximately six officers. No one informed him why his car was being searched.

27. Mr. Purcell Holmes heard the officers begin saying “lunch, lunch, lunch,” and asked them what they meant.

28. At no time did NYPD have probable cause to search Mr. Purcell Holmes’ car.

29. Suddenly, the officers grabbed Mr. Purcell Holmes by the arms tightly, and handcuffed him. He was taken to the 47th Precinct, where he was photographed, processed, and arrested for the criminal possession of a loaded pistol. He was handcuffed so tightly that his wrists were cut, forming welts.

30. At no time did NYPD have probable cause to arrest Mr. Purcell Holmes.

31. Mr. Purcell Holmes was brought to an interrogation room, where Officer Senat told him that a gun was found in his car – and that they had learned that Mr. Purcell Holmes had been shot, in 2011. Officer Senat told him that they believed he was either looking for revenge or could have been looking for revenge – despite the fact that he was shot over twelve years earlier. Officer Senat asked him if Mr. Budran knew anything about the firearm, and showed him a photo of what he claimed was the gun they had recovered, in an effort to obtain a false confession to his possession of the gun.

32. Officer Senat told Mr. Purcell Holmes they needed a sample of his DNA; Mr. Purcell Holmes agreed to provide a sample, but also asked him if he could speak to a lawyer.

33. No lawyer was provided to Mr. Purcell Holmes at that or any time while he was in custody.

34. At no time did NYPD have authority to maintain Mr. Purcell Holmes in its custody.

35. Mr. Purcell Holmes was arraigned, and bail was set by the court “due to the severity of the case.” He was sent to Rikers Island, where he stayed until his bail was posted and he was released, on April 6, 2022.

36. Mr. Purcell Holmes appeared in court approximately thirteen times to address the allegation that he was in illegal possession of a firearm.

37. His case was ultimately dismissed by the Bronx District Attorney’s office on June 12, 2023 due its failure to provide Mr. Purcell Holmes with a crucial piece of evidence until immediately before the start of pre-trial suppression hearings.

38. Mr. Purcell Holmes’ vehicle was held by the NYPD until November 16th, 2023.

39. Mr. Purcell Holmes’ keys to his apartment were within his seized vehicle, which he brought to the attention of Officer Senat.

40. Over the 14-month period while his case was open, Mr. Purcell-Holmes made requests at the 47th precinct for the return of his property, including his keys (and the vehicle itself). Officer Senat indicated that if his keys could not be located, he would personally pay for a new set.

41. When Mr. Purcell-Holmes' vehicle was finally released to him, approximately 20 months after his arrest, his house keys were never returned to him. Officer Senat did not pay for a new set of keys.

42. Mr. Purcell-Holmes had been working full-time at Daybreak, a facility for mentally disabled individuals. He was laid off from his job at Daybreak while his felony case was open (14 months), without pay. He found a job for two months during that period but was let go again after the employer did a background check.

43. Mr. Purcell-Holmes experienced tremendous, medically harmful stress, depression, and anxiety throughout the 14-month period of his open case. He lost over twenty pounds of weight. In July 2023, he was informed by his doctor that due to that stress, his liver and kidneys were not functioning properly - and he was diagnosed with diabetes.

44. Mr. Purcell-Holmes was also forced to relocate because the NYPD was holding his house keys.

45. Plaintiff Purcell-Holmes had committed no crime but was subjected to a false arrest and imprisonment and excessive force at the hands of the City and the Defendant Officers.

46. Plaintiff Purcell-Holmes suffered embarrassment, humiliation, emotional distress and degradation at the hands of the agents and/or employees of New York City.

47. Plaintiff also seeks punitive damages against New York City, its agents and/or employees, as their actions were at all times willful, intentional and conducted with malice.

48. Within ninety (90) days after the causes of action accrued herein, and more than thirty (30) days prior to the commencement of this action, Plaintiff caused a notice of claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff herein, containing the statement of the name and place of residence of the claimant by the street and number and their attorney,

and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon defendant CITY, its agents, servants and/or employees.

49. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claims, and said claims remain unadjusted and unpaid, although plaintiffs herein have requested and demanded that the same be paid and adjusted.

50. That defendant CITY requested oral examinations pursuant to General Municipal Law Section 50-H and said requests were complied with.

AS AND FOR A FIRST CAUSE OF ACTION AS TO DEFENDANTS
THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT;
NEW YORK CITY POLICE OFFICERS SENAT, LLUBERES, FERRER, LOPEZ,
HERNANDEZ, PAULINO, and GIBSON: FALSE ARREST

51. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered 1-50 with the same force and effect as if fully set forth at length herein.

52. That beginning on or about the date of incident at or near the location of incident, the City and Defendant Officers falsely arrested Plaintiff, without any just cause.

53. That said false arrest was in violation of the Fourth Amendment of the United States of America.

54. That said false arrest was committed by the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe

that Plaintiff was guilty of any crimes, or that the City or Defendant Officers had just cause to arrest Plaintiff.

55. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, and was forced to submit to the aforesaid arrest entirely against his will.

56. That the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, as set forth above, intended to falsely arrest Plaintiff; Plaintiff did not consent to the arrest; and the arrest was not otherwise privileged.

57. That by reason of the aforesaid arrest of Plaintiff, his right to be free from unreasonable search or seizure of his person and possessions was violated, and he was subjected to great indignity, humiliation, pain and great distress of mind and body.

58. That at all times hereinafter mentioned the actions of the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION AS TO DEFENDANTS
THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT;
NEW YORK CITY POLICE OFFICERS SENAT, LLUBERES, FERRER, LOPEZ,
HERNANDEZ, PAULINO, and GIBSON: FALSE IMPRISONMENT

60. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered 1-59 with the same force and effect as if fully set forth at length herein.

61. That beginning on or about the date of incident at or near the location of incident, the City and Defendant Officers intentionally handcuffed, restrained, and imprisoned Plaintiff, without any just cause, and held him against his will until he was released.

62. That Plaintiff was falsely imprisoned and remained imprisoned for an excessive amount of time.

63. That said imprisonment was caused by the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that Plaintiff was guilty of any crimes, or that the City or Defendant Officers had just cause to imprison Plaintiff.

64. Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his imprisonment by the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, and was forced to submit to the aforesaid imprisonment entirely against his will.

65. That the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, as set forth above, intended to confine Plaintiff; Plaintiff was conscious of his confinement; Plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

66. That by reason of the aforesaid false imprisonment and detention of Plaintiff, his freedom was restricted, his right to privacy was violated, and he was subjected to great indignity, humiliation, pain and great distress of mind and body.

67. That at all times hereinafter mentioned the actions of CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON as described above

were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

68. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION AS TO DEFENDANTS THE CITY OF NEW YORK; THE NEW YORK CITY POLICE DEPARTMENT; NEW YORK CITY POLICE OFFICERS SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON: ASSAULT, BATTERY, AND EXCESSIVE FORCE

69. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered 1-68 with the same force and effect as if fully set forth at length herein.

70. That on the date of incident and at the location of incident, Plaintiffs were assaulted, battered, and subjected to excessive force.

71. The CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, while acting within the scope of their employment, touched, grabbed, searched, handcuffed, seized, and otherwise subjected Plaintiff to excessive force.

72. The CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON had no reason or just cause to assault, batter, and subject Plaintiff to excessive force. Said conduct was without the Plaintiff's consent or permission and was far in excess of any force necessary to effectuate Plaintiff's imprisonment and/or control over his person. Said force was excessive given the nature and/or lack of any complaint concerning Plaintiffs and any potential alleged threat they may have posed. Further, said conduct was unprivileged because there was no lawful basis to imprison or control Plaintiff and he was never in violation of any penal or criminal law.

73. That the CITY, NYPD, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON, acting as agents on behalf of the City and within the

scope of their employment, intentionally, willfully, and/or maliciously assaulted, battered, and subjected Plaintiff to excessive force, in that they had the ability to cause imminent harmful or offensive bodily contact and intentionally did acts which threatened to and did cause such contact to Plaintiff. That said acts caused apprehension of such offensive contact and actual offensive conduct to Plaintiff, when officers in a hostile and/or offensive manner touched Plaintiff without his consent and with the intent to commit offensive bodily contact to Plaintiff.

74. That the CITY is liable for the actions of its employees, including the above-named agents, servants, and/or employees for conduct committed within the scope of their employment. That by reason of the aforesaid intentional assault, battery, and excessive force, Plaintiffs suffered and still continues to suffer from physical, emotional, and psychological injuries to their bodies and minds, and suffered conscious pain and suffering.

75. That by reason of the foregoing, Plaintiffs have been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT
NEW YORK CITY FOR NEGLIGENT TRAINING, HIRING, RETENTION,
SUPERVISING, AND PROMOTING**

76. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered 1-75 with the same force and effect as if fully set forth at length herein.

77. That the CITY was negligent, careless and reckless in hiring, retaining, supervising, promoting, training, and retraining its employees and Defendant officers, in that said officers, as employees of the CITY, were not qualified to be hired, retained, or promoted as police officers and lacked the experience, skill, training, and ability to be employed by the CITY as police officers.

78. That the CITY failed to exercise due care and caution in its hiring, retaining, promoting, and training practices; in that the CITY failed to adequately test, analyze test results, and/or investigate said officers' backgrounds; the County failed to adequately screen said officers; failed to adequately monitor officers; failed to properly discipline officers who violate the NYPD Patrol Guidelines; failed to adequately monitor officers' Central Personnel Indexes (hereinafter "CPI"); failed to properly discipline and monitor officers who are investigated by NYPD, and the Internal Affairs Bureau; failed to properly train and retrain officers; and in that the CITY and Defendant Officers were otherwise careless, negligent, and reckless.

79. That the aforesaid occurrence – an unauthorized arrest, false imprisonment, assault, battery, and excessive force, and the resulting injuries to mind and body – was caused wholly and solely by reason of the negligence or deliberate indifference of the City and Defendant Officers without any negligence on the part of Plaintiffs contributing thereto.

80. That by reason of the aforesaid, Plaintiffs have been damaged in a sum exceeding the jurisdictional limits of the lower courts of this State.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT
THE CITY OF NEW YORK FOR VIOLATION OF PERSONAL
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 and
MONELL v. DEPT. OF SOCIAL SERVICES OF CITY OF NEW YORK

81. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1- 80 with the same force and effect as if more fully and at length set forth herein.

82. That on the date of incident and at the location of incident, the CITY and Defendant Officers were present as part of their regular and official employment as police

officers for the CITY and were acting under the color of law and within the scope of their employment.

83. That the CITY caused, developed, maintained, and/or created a policy and/or procedure and/or custom and/or practice, or decision of a final policymaker, and acted with deliberate indifference to patterns and/or police practices violating constitutional rights of its citizens, which caused the violations of Plaintiff's rights, including the following and as outlined in more detail below: improperly arresting Plaintiff without a warrant or probable cause; improperly holding, imprisoning, and/or detaining individuals without probable cause and justification; excessive and arbitrary use of force; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence and investigate when allegations of police misconduct are alleged; condoning silence within the police department regarding misconduct; failing to properly supervise, train, investigate, or discipline officers; falsely swearing out criminal complaints and police paperwork; falsifying evidence and NYPD paperwork; committing perjury; failing to respond to evidence of corruption; and failing to intervene to prevent the abovementioned practices.

84. That as to all of the violations alleged in this fourth cause of action, the CITY knew to a moral certainty that its employees would confront situations like the subject incident involving Plaintiff, in which decisions regarding warrantless home entry, stop, question, frisk, detention and use of force would need to be made.

85. That as to all of the violations alleged in this fifth cause of action, the CITY has a history of its employees mishandling similar situations similar to the subject incident, which present CITY's employees with choices of the sort that training or supervision would make less difficult.

86. That as to all of the violations alleged in this fourth cause of action, the wrong choice by CITY employees will frequently cause the deprivation of citizen's constitutional rights, as in the subject incident.

87. The City of New York has a long history of improper and constitutionally impermissible stop, question and frisk practices, including thousands of unlawful detentions of innocent young men of color without basis in law, resulting in the landmark decision in *Floyd v. City of New York*, 959 F. Supp. 2d 540 (S.D.N.Y. 2013). The same questionable practices have, however, persisted to this day, including the actions against Plaintiff, who was detained purely because of his race.

88. As a result of the above-mentioned failures and policies, the CITY has a policy, procedure, custom, and/or practice of not training, providing inadequate training, and improperly supervising its officers and supervisors in responding to situations involving the stop, question, frisk, detention and search of men of color.

89. The above failures were a contributing factor to the incident involving Plaintiff and resulting injuries because the CITY had no appropriate policy in place for such a situation and had not properly trained or supervised its officers in how to handle this situation.

90. The failure of the CITY and Defendant Officers who responded to the scene to follow the any lawful NYPD stop, question and frisk policies in effect at the time of the incident also led to and/or contributed to Plaintiff's injuries.

91. The failure of NYPD supervisors to follow NYPD stop, question and frisk policies in effect at the time of the incident and their failure to adequately supervise the officers under their commands contributed to Plaintiff's injuries.

92. That as Plaintiff was lawfully and properly at the subject location, the CITY and Defendant Officers failed to properly use verbal commands to communicate with Plaintiff and instead resorted to excessive force to imprison and control Plaintiff.

93. The existence of aforesaid unconstitutional customs, policies, patterns, and/or practices may be inferred from repeated occurrences of similar wrongful conduct in New York City, as documented in *Floyd*, supra, et seq.

94. That said above-acts, inclusive of paragraphs 1-90 herein, constituted an illegal seizure of Plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

95. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States of America, violated Plaintiffs' right to be secure in his person, and that the CITY and Defendant Officers used excessive and unlawful force.

96. That the CITY and Defendant Officers on the date of incident performed their duties under the color of the policies, statutes, ordinances, rules, and regulations of the CITY.

97. That Plaintiff did not commit any illegal acts, either before or at the time he was falsely arrested and he was falsely imprisoned, assaulted, battered, subjected to excessive force, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. § 1983 and the Constitution of the State of New York.

98. That by reason of the aforesaid, Plaintiff was injured in mind and body.

99. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts of this State and seek punitive damages, costs,

attorney's fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS TO DEFENDANT
OFFICERS SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and
GIBSON**

100. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1- 99 with the same force and effect as if more fully and at length set forth herein.

101. That at all times hereinafter mentioned, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were each employed by the CITY and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules, and regulations of the CITY.

102. That at all times hereinafter mentioned, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were acting pursuant to orders and directives from the CITY.

103. That during all times hereinafter mentioned, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the CITY and that SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were acting under the color and pretense of law and engaged in the illegal conduct set forth in this complaint to the injury of Plaintiffs and deprived them of the rights, privileges, and immunities secured to him by the First, Fourth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States, the laws of the United States, the Constitution of the State of New York, the laws of the State of New York, and 42 U.S.C. § 1983 and 42 U.S.C. § 1986.

104. That the unlawful and illegal conduct of SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON deprived Plaintiff of the following rights, privileges, and immunities secured to them by the Constitution of the United States and of the State of New York:

- a. The right of Plaintiff to be secure in his person, home, and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
- b. The right of Plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States;
- c. The right to have freedom of speech;
- d. The right to be free from cruel and unusual punishment;
- e. The right to due process of law.

105. That by reason of the aforesaid violations committed by SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON against Plaintiff – false arrest, false imprisonment, assault, battery, and use of excessive force – Defendants violated Plaintiffs’s rights and privileges as provided to them in the Constitution of the United States of America and the Constitution of the State of New York, and laws thereto. SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON and the CITY, through a policy of deliberate indifference, violated 42 U.S.C. § 1983.

106. That as a proximate result of SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSONS’ actions, Plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body.

107. That by reason of the aforesaid, Plaintiffs were injured in mind and body, still suffer, and upon information and belief will continue to suffer great physical and mental pain.

108. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdiction of the lower courts of this State and sees compensatory damages, plus punitive damages, costs, attorney's fees, expert fees, as set forth and provided by 42 § U.S.C. 1988, and such other relief as the court may deem just and proper.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS TO DEFENDANT
OFFICERS SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and
GIBSON FOR FAILURE TO INTERVENE**

109. That Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1-108 with the same force and effect as if more fully and at length set forth herein.

110. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe or have knowledge that another member of the NYPD or other law enforcement agency violated a civilian's constitutional right(s).

111. That SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON witnessed and/or had knowledge of SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON'S and the CITY'S unlawful and/or unconstitutional arrest, imprisonment of, and excessive force against Plaintiff. Said actions were without probable cause or other legal justification and were based on facts known to the officers to be false. However, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON failed to take any action or make any effort to intervene, halt, or protect Plaintiff from

being unlawfully, unconstitutionally, and/or wrongfully trespassed upon, imprisoned, assaulted, battered, and subjected to excessive force.

112. That by reason of the aforesaid, Plaintiff was injured in mind and body.

113. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. § 1983 AS TO DEFENDANT
OFFICERS SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and
GIBSON FOR FOR ABUSE OF PROCESS**

114. That Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1-113 with the same force and effect as if more fully and at length set forth herein.

115. By the conduct and actions described above, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON employed regularly issued process against Plaintiffs compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm Plaintiffs without economic or social excuse or justification, and the City, SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were seeking a collateral advantage or corresponding detriment to Plaintiff, which was outside the legitimate ends of the process. The acts and conduct of SENAT, LLUBERES, FERRER, LOPEZ, HERNANDEZ, PAULINO, and GIBSON were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the United States of America and the State of New York.

116. That by reason of the aforesaid, Plaintiff was injured in mind and body.

117. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts of this State and seek punitive damages, costs, attorney's fees, and expert fees as provided by 42 U.S.C. § 1988, and such other relief as the court may deem just and proper.

WHEREFORE, Plaintiff TISHAN PURCELL-HOLMES demands judgment against the defendants on the First Cause of Action through the Eighth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: June 11, 2024

Hempstead, New York

Yours, etc.,



Brill Legal Group, P.C.

Attorneys for Plaintiff

By: PETER BRILL, ESQ.

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Hempstead, NY 11550

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ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice before the Courts of the State of New York, hereby affirms as true under penalty of perjury that affirmant is a member of the firm of BRILL LEGAL GROUP, P.C., attorneys for Petitioner in the within action; that affirmant has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and that those matters affirmant believes to be true.

This verification is made by affirmant and not the Plaintiff TISHAN PURCELL HOLMES because Plaintiff is not located in the county where your affirmant maintains his office.

Dated: Hempstead, New York
June 11, 2024



Peter E. Brill